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Kamuzu's Mbumba: Malawi Women's Embeddedness to Culture in the Face of International Political Pressure and Internal Legal Change

Linda Semu

The case of Malawi shows that while legal reform, transition to political pluralism, and adoption of the language of international human rights may facilitate the formation of a constitution that guarantees and respects all people's human rights, a cultural discourse that presents contradictions and ironies regarding women's status may limit the extent to which these processes are translated into automatic and predictable gains for women. Precolonial gender roles and historical processes in the colonial and postcolonial period have resulted in a fluidity with which the concept of culture is used. Under Kamuzu Banda's rule, the state appropriated the mbumba culture to create a mass-based political organization, and yet did not give women real power. Since the transition to liberal democracy in 1993–1994, the Malawi government has shown a willingness to preach gender equality by adopting a nondiscrimination clause in its constitution and undertaking legal reform and policy initiatives; however, the political will to act is not in evidence. Women have resisted the cultural opposition to their empowerment by utilizing their matrilineal role as kingmakers and adopting arguments consistent with traditional participatory decision-making processes to push for changes in their favor, albeit with little effect. Currently, civil society seems the most viable option for speeding up women's participation in the political process and the legal sphere. Through it, women can push for legal changes, provide legal literacy to women, address constraints to women's participation in the cultural arena through civic education, and work closely together within and outside the formal political process.

Introduction

This paper shows how politics and popular discourse in Malawi have manipulated culture to produce ambiguities regarding the status of women. Legal reform, the transition to political pluralism, and the language of international human rights have produced an inclusive national constitution which guarantees and respects all people's human rights, but this development has to be understood within the context of a cultural discourse that presents contradictions and ironies regarding women's personal and public lives. Public rhetoric in Malawi leans toward an uncritical respect for, and deference to, notions of culture (Lwanda 1996). It does so particularly with regard to the role and status of women. This paper expounds the view that the status of women in Malawi has to be understood within the context of the historical, political, cultural, and legal experiences that have shaped the structure of present-day Malawi. Political and economic factors originating from Malawi and abroad have influenced how the concept of gender is viewed and applied at the formal political level. This paper shows that when women's roles are considered politically important, the state appropriates the gender concept, sometimes in response to international political pressure. Women's participation at the formal political level, and the impact that discourse on human rights and the rule of law at the international level have had on the outcomes of legal and constitutional reform in Malawi, illustrate this point. In the face of a rhetoric that leans toward undefined cultural arguments, debates on women's political participation and favorable legal reform tend to be contradictory. While seemingly advancing women's interests, the fluidity with which cultural arguments are used to advance certain positions renders it difficult to predict the outcomes of legal and political change. The analysis in this paper reflects the author's own experience as a Malawian women's activist and researcher and research with gender activists and researchers working in Malawi.

Gender and the Invention of Culture in Malawi

An interplay of historical processes in precolonial times and during colonial rule, and of political rhetoric in the postindependence era, have created ambiguity in the application of concepts of culture and gender in Malawi. Matrilineal and patrilineal ethnic groups have inhabited the area since precolonial times. While the woman in the matrilineal system was and is critical in facilitating the tracing of rights and duties, authority was and is exercised through males: uncles, cousins, and brothers. In contrast, the tracing of rights and duties through the father, patrilocality, and bride-wealth have helped consolidate the position of men in patrilineal groups. Though women have some autonomy in the former kinship system, men

have largely enjoyed considerable power within both systems. Four historical factors contributed to the erosion of the status of Chewa¹ women: the introduction of slavery, from 1810; the coming of patrilineal societies into Malawi, from the early 1870s; the introduction of Christianity and colonization; and the introduction of the money economy (Phiri 1997:40). With slavery, women lost control of their sexuality and were valued only for the children they could bear for their masters. With the arrival of patrilineal groups, some Chewa men adopted the system of payment of bridewealth, thus acquiring control over women and their children. Similarly, Christianity was introduced to Africa as a male-dominated religion. Anything that was incompatible with this perspective, *including the matrilineal system*,² was crushed (Phiri 1997:40–43).

Coupled with Christianity, colonialism added new complications by imposing its own concepts of gender-role differentiation, such as the Western concept of *Mrs.*, which most women adopted. This term of address implied the primacy of the husband at the expense of a woman's identity, since she was no longer being addressed by her father's name and/or clan name. For example, a woman whose father's name was Banda was no longer being addressed as naBanda, meaning 'daughter of Banda', as she would formerly have been (Lwanda 1996). Missionaries and Western modernizing agents compounded the situation through their lack of commitment to women's education. At the same time, women's traditional roles in food production were weakened, since the modernizing agents tended to focus attention on men as agricultural producers (Phiri 1997:47). Add to this picture the introduction of cash-crop production, labor migration, changes in property rights (especially privatization of land), and it becomes clear that conditions were further consolidating the position of men. As a result, in both matrilineal and patrilineal systems, new ways of relating to women emerged. In matrilineal systems, dependence on cash and labor migration favored men and forced women to become increasingly dependent on men economically. As a result, the autonomy that women had enjoyed vanished (Davison 1997). Despite the vitiating effects of external forces the matrilineal system has persisted, albeit in an altered form (Berheide and Segal 1994). Its tenacity is due to two features that are important for the welfare of women: uxorilocality and women's land rights (Hirschmann and Vaughan 1984). In patrilineal systems dependence on cash income resulted in more controls on women's labor and fertility by the patriarchy. Limited employment opportunities in industrial, domestic, and clerical work has meant that, generally, more men than women have been absorbed into the labor economy (Forster 2001:247).

The erosion of women's economic autonomy occurred at a time when traditional chiefs were losing much of their power and control to the colonial and Christian influence. Left with ceremonial roles, chiefs concentrated on their cultural roles, which primarily involved establishing control over women, who were the majority of the population in rural areas. The rural-urban population distribution has remained stable over the

years, with the majority of the population still residing in rural areas, and women being in the majority. The 1998 Population and Housing Census shows that only fourteen percent of Malawi's population resides in urban areas. In addition, in the four urban areas of Malawi (Mzuzu, Lilongwe, Blantyre, and Zomba), females form 48 percent of the total population and the sex ratio is at least 1.06 (Government of Malawi 2000a:ix, xiv).³ The rurality of the population, with its attendant low levels of education, poverty, and inadequate cash-income sources, has made the population vulnerable to political manipulation of various sorts, including what Forster (1994) refers to as the invention of tradition. Various groups have at various times created definitions of culture to suit their particular interests. For example, Martin Chanock (1985) argues that the development of customary law was part of an idealization of the past that was evoked in an attempt to cope with social dislocation. It was defensive, not only against British rulers, but against Africans whose involvement in the wage-labor market led them to hold different views on obligations and proprieties. Capitalist penetration changed the bases of inequality and power, and in the process challenged and disturbed hierarchies: it triggered a redistribution of power in social life, especially changes in relationships between generations and between sexes (Chanock 1985:4–16). For chiefs, a predominantly rural population helped institutionalize customary law, through which African tradition was highly valued as the basis for social cohesion and national identity. In attempts to exert control, chiefs were supported by other individuals, such as traditional medicine practitioners and birth attendants, who had a lot to lose in the new colonial dispensation. It is not surprising that when demands for an end to colonial rule were being made, chiefs evinced mixed reactions. Some became antipathetic toward self-government, as they feared that self-government would undermine their position, since commoners would become rulers.⁴ They feared that self-government would mean electing commoners as members of parliament and heads of government departments. Not surprisingly, to pursue their interests, British officials exploited and fanned these fears among the chiefs (Chipembere 2002:239–242). In contrast, chiefs who supported self-rule argued that it was better to be ruled by their own sons, whom they had educated, instead of being ruled by foreigners.⁵ Paradoxically, this view was supported and exploited by nationalists, who looked to traditional customs and cultures as asserting that Malawians had a way of life before colonialism (Lwanda 1996:202). In the process, anticolonialists reinvented culture and used it as a rallying point for calls to political independence. It is from these seemingly contradictory uses of culture that an enclave political regime was established (Forster 1994:491), with far-reaching results on the status of women in Malawi.

Kamuzu's Mbumba: The Manipulation of Culture under One-Party Rule (1958–1994).

The paradox on the status and role of women in matrilineal⁶ society is used to illustrate how the concept of culture was appropriated by the state to create a mass-based political organization. The matrilineal system accorded women some value: women gained status through undergoing initiation ceremonies and had some say about whom they would marry. In addition, they were accorded important privileges: uxori-locality, the right of ownership of the offspring of a marriage, the right to remarry after divorce or a husband's death, and the right to inherit land which they tilled with their husbands (Phiri 1997:22, 32, 39). Women also exercised considerable influence in decision-making, especially in the selection of chiefs and other leaders (Aguilar and Aguilar 1999). The matrilineal system therefore granted women some freedom and dignity. Still, within the matrilineal system existed contradictions that resulted in ambiguities when matrilineal concepts were adopted at the formal political level. These ambiguities were an inherent feature of matriliney:

Images of Chewa women in matrilineal society can be understood by examining the family system in two perspectives. The Chewa woman was looked upon as the root of the lineage (*tsinde*) as well as a dependent (*mbumba*). These two perspectives show that although a matrilineal society gave a woman high status and a certain amount of freedom which was not there in a patrilineal society, she was also heavily dependent upon, as well as controlled by, her uncle and brother who had total power over her, whether single or married. Her family power did not mean matriarchy. The Chewa woman was not spared from the evils of ritual intercourse during initiation, early marriages, mental torture to barren and single women, polygyny, levirate marriages and abusive widowhood rites. Thus Chewa society was also patriarchal. (Phiri 1997:32)

Under the rule of Kamuzu Banda, the Nationalists, and later the Malawi Government and the Malawi Congress Party (MCP), manipulated the literal and figurative role of women in the matrilineal cultural sphere. In the process, culture was redefined to suit political ends; however, since the matrilineal system was inherently contradictory in regard to the status of women, politicians knowingly or unknowingly did not set out to resolve the ambiguity. Rather, the strategies and policies that they adopted further consolidated contradictions and ironies on the role and status of women in the new political dispensation. In 1958, the Women's League was formed as an extension of the MCP. Its leader, Ms. Rose Chibambo, believed she was leading a movement that would advance women's interests (Lwanda 1993).

In contrast Banda's idea of the movement was that of an organization that the state (and he personally) would use as a means of appropriating gender concerns for national development and political goals (Lwanda 1993:21). To attain his goals, he appropriated the matrilineal concept of *mbumba* but ignored the idea of women as *tsinde*.⁷ He created a "*mbumba* culture" (Lwanda 1996:203), through which he appropriated the traditional relationship between women, who form a sorority (*mbumba* in Chichewa), and their male guardian, who can be a brother or an uncle from the mother's side (*nkhoswe*). In 1963, Banda declared himself "Nkhoswe No. 1" (Chipembere 2002:79). Ironically, despite his professed aim of promoting and maintaining cultural identity, he imposed these matrilineal concepts throughout Malawi, even though some areas of Malawi were patrilineal.⁸ Through the *nkhoswe* role, he created an image of a community benefactor by providing special benefits to some of his active supporters. These benefits included plane trips abroad and constructing houses for some chiefs and members of the women's league. In particular, his personal attention was directed at "the women of Malawi and his policies aimed at improving their position, albeit within a framework where in some respects their status was still in traditional terms" (Forster 1994:491). In return for this favor, women had to buy and wear political party uniforms emblazoned with his portrait, and to sing and dance praise songs at political party meetings. Through song and dance for their *nkhoswe*, they formed a mass base of political support for the party. This process restricted women's public role in politics to that of supporters of male politicians. In addition, "traditional dances were adapted for modern political purposes as a crucial feature of cultural nationalism" (Forster 1994:491).

The exploitation of women for political purposes notwithstanding, women had chances to accrue some notable gains, especially through the Wills and Inheritance Bill (1964), nomination to Parliament, and visibility in public life. The Wills and Inheritance Bill, better known as the "Kamuzu's Mbumba's Protection Bill," declared illegal certain injustices done to women in matters of inheritance, illegitimate pregnancy, marriage, and divorce (Chipembere 2002:79). In presenting the bill to Parliament, Banda noted that whether in a matrilineal or a patrilineal system, a woman does not inherit anything in her own right upon her husband's death. In the patrilineal system, the sons or the brothers of the deceased husband are the traditional heirs; in the matrilineal system, the sisters, brothers, nephews, or nieces of the deceased are the traditional heirs. Thus, in clause 11 of the bill, he broke with tradition and proposed that if a man dies intestate, four-fifths of his earthly goods should go to his wife and children. The bill received favorable response from all members of Parliament (from matrilineal and patrilineal areas),⁹ including Rose Chibambo, who was then the only female member of Parliament.

Unfortunately, though the bill was well publicized and well received by many in Parliament, it failed to pass (Chimango 1998:34). Instead, in 1967, Parliament passed the Wills and Inheritance Act, which proposed

three forms of sharing property of a deceased husband, depending on where and how the marriage had been contracted: a surviving wife and children in patrilineally based marriages would receive half the property; the wife and children in matrilineal marriages would get would get two-fifths, and the rest would go to the man's traditional heirs; in cases of marriage contracted under the marriage act, the woman would get the first MK10,000.00¹⁰ worth of property, and the balance would be divided between her and the children. If there were no children from the marriage, then half of the property would go to the deceased husband's relatives. It is not clear why the 1964 Wills and Inheritance Bill was never approved or implemented. Records of the debate on the 1967 act indicate no reference to the earlier bill. The attempt to introduce a uniform system of inheritance throughout the country may have been resisted by both matrilineal and patrilineal groups, which saw it as an infringement on their cultural identity. The 1967 act is still operational, despite calls for: (i) a uniform inheritance system throughout the country; (ii) a change in the proportions so that the immediate family (surviving spouse and children) gets at least 75 percent of the deceased's estate; (iii) the need to make the act more gender-sensitive, since it assumes that the husband predeceases the wife and is the only breadwinner in a marriage (Chimango 1998). In 1999, an amendment to the act declared the grabbing of property by a deceased spouse's relatives a criminal act, subject to prosecution.¹¹

To confirm his position as Nkhoswe No. 1, President Banda went further and started nominating women to Parliament in 1977. The women he nominated did not necessarily have gender interests in mind. Literacy levels in Malawi were low; later, in 1998, they were 64 percent for men and 51 for women (Government of Malawi, 2000a:ix). The women who had had a chance of getting an education therefore had privileged backgrounds. Coupled with a Parliamentary English proficiency requirement, it was privileged women who had the best chance of being nominated to Parliament. Very often, political and class interests took precedence over gender interests. As the ruling regime became more and more dictatorial, all members of Parliament had to toe the prescribed political line. Nomination to Parliament, *Mbumba* dancing, and Kamuzu's professed role as the Nkhoswe No. 1 helped bring visibility for women to public life. With the exception of Cecilia Kadzamira, the Official Government Hostess, most female appointees did not acquire considerable political power. As is typical of dictatorships, some of the women fell out of favor once they started exhibiting tendencies toward amassing power.¹² As Official Government Hostess, Ms. Kadzamira's position shows the ambiguity most women find themselves in when the male leadership professes a commitment to women's empowerment and yet manipulates definitions of culture to suit their (men's) own position. She had a high profile position. She lived with Kamuzu and accompanied him to all public functions, both political and official. She hosted all receptions in the state residence. However, she was a civil servant, and not a politician; therefore, even though she shared the

platform with Banda, her voice was muted, since she could not address public meetings.¹³ The paradox of her position lay in the fact that, symbolically, as a high-profile person, she stood for what women could become if given a chance. And yet her silence confirmed the commonly held view that a woman should be seen but not heard. It is not surprising therefore that the rhetoric for women's empowerment was not translated into real power. In the Civil Service, most women occupied support positions (as secretaries, office clerks, and cleaners), rather than decision-making positions. Less than a handful of university-educated women attained considerable achievements in the Civil Service and by the early 1990s had attained posts of deputy and/or principal secretary in their own right.¹⁴

The ambiguity with which women were viewed illustrates the fluidity in which male political leaders defined culture to suit their interests. Though President Banda adopted the traditional concept of *nkhoswe* to advance his interests and create a support base for the party, he also used cultural arguments to control women and youth. In 1971, the Decency in Dress Act made it unlawful for women to wear pants, shorts and mini-skirts in public, and placed restrictions on men's appearance, especially hair length. The law's supporters argued that Western dress (long hair for men; pants and miniskirts for women) was not in line with Malawian cultural traditions. In November 1993, the Decency in Dress Act was repealed by an act of Parliament. This was after the referendum of May 1993, in which Malawians opted for multiparty politics. As a result, a general election was set for May 1994. In the face of political expediency, particularly in view of an imminent general election, the cultural argument that had placed women and youth under the control of the male political leadership was abandoned.

President Banda's rhetoric reflected his view of women as dependent relations, the *mbumba*. With the exception of the sweeping reforms of 1964, including the Kamuzu's Mbumba's Protection Bill, he did not provide an equal-rights clause in the constitution.¹⁵ Most often, services available to women tended to be those related to their traditional gender roles: home economics, adult literacy, and maternal and child health programs (Lwanda 1993:210–211). To ensure grassroots support for the party, he gave women token power while he and his male protégés retained full political control. This strategy created an illusion of power for women. Its effect was the perception that women had been the main beneficiaries of his rule. Not surprisingly, during the critical transition phase in 1992–1993, many men felt that women's new power had to be reduced. In reality, real power lay with Banda and the men he worked with. The discrepancy between rhetoric and reality during Banda's rule becomes clear when women's participation in the formal political process is examined (see table 1).

In spite of the *mbumba* culture and the organizational structure of the Women's League,¹⁶ women failed to capitalize on the power that was based on their sheer numbers, since they held the grassroots base of the MCP: "Even though the *mbumba* were a major factor in Dr Banda's power base, his time in power did not significantly or permanently increase the

Table 1
Women's Participation in Parliament and the Executive: 1966–1992

<i>Year</i>	<i>Ministers</i>		<i>Deputy Ministers</i>		<i>Elected Members of Parliament</i>		<i>Nominated Members of Parliament</i>	
	<i>M</i>	<i>F</i>	<i>M</i>	<i>F</i>	<i>M</i>	<i>F</i>	<i>M</i>	<i>F</i>
1966	11	–	9	1	47	1	4	–
1972	13	–	1	3	50	1	7	–
1977	13	–	2	–	64	5	–	9
1982	12	–	–	–	49	8	14	23
1987	11	–	–	–	74	5	12	1
1992	12	1	3	2	79	3	15	7

Source: Parliamentary Hansards, 1966–1992 (Zomba: Government Printer).

role and power of women in Malawi society" (Lwanda 1993:210). Between 1966 and 1992,¹⁷ there were cumulatively 72 male cabinet ministers, but the first woman to get a ministerial portfolio was appointed in 1992. During this period, 363 men, but only 23 women, were elected to Parliament. Of the 92 nominated members of Parliament,¹⁸ 40 were women. The largest reported number of female nominations (23) was in 1982, before the U.N. Women's Conference held in Nairobi in 1985. The power to nominate members of Parliament enabled some women to get into political positions that otherwise would have been closed to them. While cultural arguments were used to build and maintain a male political hegemony, some benefits were accruing to women, albeit a select few.

The year 1982 is the only year in the history of Malawi when a large number of women were serving together in Parliament (see table 1). It was important for Banda to nominate a large number of women to parliament at that election, since preparations were under way for the Women's Conference in Nairobi. Nominating large numbers of women presented the MCP government, and in particular President Banda, in a positive light regarding women's empowerment. By 1987, two years after the women's conference, only one woman was in parliament. It was only in 1992, when calls for political pluralism became widespread, that Banda increased the number of female nominated members of Parliament as a way of appealing to the women voters. The impact of his failure to facilitate the blossoming of gender equality hit women the hardest. Women lost the political clout they had previously enjoyed, involving privileges such as the right to be nominated to Parliament. In addition, during the critical phase of political transition in Malawi (1992–1993), the general feeling among some men was that women had played a major role in perpetuating Banda's regime, and it was time to pay women back for it. During the first postindependence industrial unrest in Malawi, in May 1992, women wearing Banda's cloth were publicly assaulted (Lwanda 1996:203), and the MCP did not condemn the assaults.

The matrilineal tradition contains contradictions regarding the status of women. Even though Kamuzu Banda had challenged some traditions through the Kamuzu's Mbumba's Protection Bill, the benefits to women were not immediate.¹⁹ By failing to institutionalize gender reforms Banda helped perpetuate women's ambiguity in public life. As a result, democratization of the political process has not translated into automatic political gains for Malawian women (UNESCO 1994). As is illustrated by results of the two general elections in the post Banda era, in 1994 and 1999 (table 2), few women hold elective offices.

In the 1994 parliamentary elections, only 6 percent (10/177) of the winning candidates were women. Elections were held again in 1999, and still women did not make big inroads into elected public office: the proportion of elected female members of Parliament has increased to 9 percent, a negligible figure in view of the fact that women comprise 51 percent of the national population. Democratic change has not necessarily opened up the political space for women; it has deprived them of the privilege of nomination to Parliament. Furthermore, within the political arena, women have not been able to do away with the *mbumba* phenomenon, despite the new political dispensation. Women's dance is still alive in the post-Banda era, albeit on a smaller scale. As early as 1993, when the rhetoric for political transition, human rights, and equality was at its peak, women were being organized into dance groups depending on political party affiliation. Apart from the MCP *mbumba*, who still wear cloth with Kamuzu Banda's portrait, there are now yellow and blue *mbumba*, representing the colors of the United Democratic Front (UDF) and the Alliance for Democracy (AFORD). The continuity of women's supporting role through dance at public rallies is aptly captured in the following observation: "Where are those women who were dancing here? Could they please come here so that we can see them?—MCP rally 1969; AFORD rally 1993; UDF rally 1994" (Lwanda 1996:200). The only departure from the past is that the women dancers

Table 2
Members of Parliament by Political Party and Gender

Political Party	March 1994			October 1999		
	Male	Female	Total	Male	Female	Total
AFORD	32	1	33	28	1	29
MCP	50	4	54	63	2	65
UDF	79	5	84	87	13	100
Total	167	10	177	178	16	194

Sources: Clerk of Parliament, Zomba, Oct 1994;
<http://www.malawi.net/elections99/results.html>
 AFORD- Alliance for Democracy;
 MCP- Malawi Congress Party;
 UDF-United Democratic Front

are paid. Women were formerly expected to dance as a sign of gratitude to the Nkhoswe No. 1. During the transition to political pluralism, parties opposing him publicly declared that once elected into office, women would not be required to dance at public rallies. Why then do these parties now condone the organizing of women into dance groups? The women are not forced to dance: some dance because they want to. The issue, however, concerns women who dance for economic reasons. This may point to the failure of the economy to provide sufficient opportunities for women to earn money. The possibility that women can make political commentary through song and dance is remote since most of the songs contain praise for the leaders of the political party that they are supporting and ridicule for rival parties. Equally important is the fact that identification along party lines has created further divisions among women. Apart from the contrasts that previously existed, such as elite versus poor, urban versus rural, and educated versus illiterate, Malawian women now have to contend with political party affiliation that tends to follow ethnic affiliation. These contrasts are not favorable to either the short- or long-term advancement of women's interests.

From Mbumba to Jenda²⁰: Legal Changes and Political Rhetoric in the Post-Banda Era

Pamene kunali Kamuzu, tinabvutika ndi mbumba, koma naye Muluzi waonjeza ndi jenda yakeyi.

During Kamuzu's rule, we suffered because of the *mbumba* rhetoric. Now Muluzi has taken women's issues to the extreme because of all this talk about gender.

—Anonymous man on the street, summarizing feelings generally expressed by men, in public and in private, 2001.

At a public rally on 1 January 2002, President Muluzi talked about his government's commitment to empowering women, and illustrated the point by mentioning that two of the people who had spoken eloquently before his turn to address the public (the Traditional Authority²¹ and the Member of Parliament for the area) were women. He also cited the public role the First Lady is playing in Malawi through her charitable organization, the Freedom Foundation Trust (Banda 2002).²² Such rhetoric has to be examined within the context of legal changes and international processes, especially a recent emphasis on human rights and the rule of law. From the mid-1980s, the state created the National Commission for Women in Development (NCWID), and since the transition to political party pluralism the Malawian people have adopted a new constitution, involving legal reform. This section will highlight the ambiguity of the state regarding

women's issues. On the one hand, the government has adopted a discourse of gender equality because of international political pressure; on the other hand, precolonial gender roles and colonial and postcolonial historical processes have resulted in a fluidity with which the concept of culture is used when questions of women's roles and status are at stake (Lwanda 1996; Hirschmann 1993).

The NCWID was established in 1984 as a response to the call, during the United Nations Women's Decade (1976–85), for governments to establish and strengthen focal points that would provide coordination on issues relating to women's needs. The NCWID is under mandate to review the situation of women in all sectors of development and to propose strategies for change. The commission operates through seven specialized committees, dealing with family health and welfare, employment, legal issues, education and training, agriculture and natural resources, small- and medium-scale enterprises, and, planning, research, and evaluation. The NCWID operates within the Ministry of Gender, Youth and Community Services. It is strategically located to inform and influence policy, and it can attract state and donor funding. However, because it is a state organ, it is a weak instrument for mobilizing women. Furthermore, it operates within a state structure where the political rhetoric strongly favors the integration of a gender perspective in development. Gender equality is still at a conceptual level, largely because efforts to translate the rhetoric into action are limited and many institutions harbor bureaucrats who hold negative attitudes about gender equality (Hirschmann 1993). The government speaks the international language of gender equality and human rights, but at the national level only pays lip service to these principles. Nationally, male leaders lack commitment to gender equality; therefore, they construct and reify culture, and in turn use culture as an excuse for nonimplementation.

The NCWID illustrates that "the blossoming of gender issues may not necessarily lead to positive change for women. In some cases, it may serve to downplay the potential of the gender concept as a means of initiating societal change, bureaucratize gender issues and slow down the process of societal transformation" (Khaila 1995:3). The government itself is often unclear on how to deal with the culture-gender dyad, which is essentially contradictory. When called upon to take a stand on specific cultural practices regarding gender, the government has sometimes sent out contradictory messages. For example, when Malawi became a party to the international women's convention (CEDAW), the government submitted reservations. It argued that "owing to the deep-rooted nature of some traditional customs and practices of Malawians, the Government of the Republic of Malawi shall not, for the time being, consider itself bound by such provisions of the convention as require immediate eradication of such traditional customs and practices" (Tomasevski 1993:117). Since the political transition of 1993, the government has shown a willingness to make adjustments, small or large, in laws particularly affecting women, includ-

ing the removal of all reservations on international human-rights conventions. Most importantly, a constitution that contains key human-rights and women's-rights clauses came into force on 18 May 1995. Its fourth chapter makes human-rights provisions, and section 20(1) of that chapter is a nondiscrimination clause, which provides for equality between women and men. Furthermore, section 24 of the constitution grants women the right to full and equal protection of the law and prohibits discrimination against women on the basis of marital status, and it grants women the same rights as men in civil law—the right to enter into contracts, rights in property, custody of children, citizenship, and nationality, and the right to a fair disposition of property upon the dissolution of marriage. Section 20(2) invalidates any laws that discriminate against women and provides for the passing of legislation to eliminate and invalidate customs and practices that discriminate against women. Section 13 requires the state to promote the welfare and development of the people through the progressive adoption and implementation of policies and legislation aimed at achieving several national goals, including gender equality (Government of Malawi 2000b; Maluwa 1995).

The government has initiated efforts to streamline women's concerns through the establishment of the NCWID and the Law Commission, which in September 2001 established the Gender Commission, which will operate for three years with a mandate to review all gender-related laws and make them compatible with the constitution. To coordinate activities, a joint gender policy was adopted between the Malawi government and all United Nations agencies working in Malawi (United Nations Agencies in Malawi 1996). The most recent government overture toward attaining gender equality has been the signing of the National Gender Policy (NGP): 2000–2005 by President Muluzi in March 2000. The NGP outlines specific policy objectives and strategies for six thematic areas: education and training; reproductive health; food security and nutrition; natural resources and environmental management; governance and human rights; and poverty eradication and economic empowerment (Government of Malawi 2000c). On governance and human rights, the policy notes that despite the introduction of multiparty democracy, women's participation in politics is limited to maintaining the support base. Thus, despite election-campaign rhetoric, including promises that at least one-fourth of the central executives of all political parties would be women, women's underrepresentation continues. Only four of the thirty-five members of the cabinet (the central decision-making body, comprising the president and his ministers) are women. The NGP calls for affirmative action to facilitate women's participation in politics and decision making. As a member of the Southern African Development Community (SADC) and a signatory to the SADC Declaration on Gender Equality of 1997, Malawi is under obligation to meet a 30 percent affirmative action quota for women in politics and decision making by 2005 (Government of Malawi 2000c:21–24). Through making various policy declarations and signing various international conventions, the gov-

ernment has implied its willingness to improve the status of women and ease women's entry into politics and decision-making positions; however, a large gap exists between the rhetoric and practice. The government's ability to deliver on its promises is severely limited by financial and human capital constraints, as well as various social groups' tendency to reify culture and use the reification as a basis for resisting change.

Legal reform, particularly its implementation and the discourse surrounding it, is often at the core of contestation. New laws give women power and rights unheard of under traditional law. Intensified by economic adversity, the law in most instances becomes the focus of a poignant struggle between men and women over scarce resources. Most often, women are at a disadvantage because of legal illiteracy (Riphenburg 1997; VanKlasen n.d.). At the formal political level, the most notable institution advocating the improvement of women's status has been the Women's Caucus, a bipartisan grouping of all female Members of Parliament, which has pushed for legal changes through Parliament. Its aim is to promote "the welfare and special interests of women, children and family life in society, under legislation and in the administrative policies of the government and other state bodies and, additionally, to focus more closely on issues of gender equality and child welfare in general" (Government of Malawi 1996:3). With the assistance of female civil service professionals and women activists, the caucus from 1996 consulted various stakeholders, including chiefs, with whom its members discussed aspects of traditional practices that were not beneficial to women. In pushing for changes in the law and cultural practices, they couched their arguments in terms of the benefits that changes would bring to the entire family and society, and not just to individual women. The caucus acquired technical assistance from the Law Commission and presented bills in Parliament for the amendment of some laws so as to make the legal provisions conformable to the current constitution. The bills were to amend the following acts: the Wills and Inheritance Act, the Malawi Citizenship Act, the Marriage Act, and the Affiliation Act. The bills were referred back to the caucus with a recommendation that its members consult more widely on the issues. Unlike the debate on the "Kamuzu's Mbumba's Protection Act" of 1964, in which Members of Parliament reasonably discussed the issue of inheritance (Nyasaland Protectorate 1964), the caucus's bill to amend the Wills and Inheritance Act²³ led male Members of Parliament to ridicule the women's issues. Their reaction to the bill focused not on the substance of the bill but on the fact that the Women's Caucus had presented it. Some members insinuated that the proposal to increase the proportion of the property that goes to the surviving spouse and children upon the death of one of the spouses would lead women to kill their husbands so they could get the property. The only amendment that passed was the clause that made property-grabbing a criminal act. The reaction of Members of Parliament to the Wills and Inheritance (Amendment) Bill reflected cultural opposition to women's empowerment—from the most personal, at the household level, to the most formal symbols of power and authority, as represented by Parliament.

The Way Forward: Resistance or Activism as Strategies for Empowering Women?

If culture is selectively reified and used to maintain the status quo, are there possibilities for women's empowerment? Why haven't women taken advantage of their sheer numbers and the matrilineal cultural rhetoric to push for change? This final section will examine strategies utilized by women in the formal political process and through nongovernmental organizations (NGOs) in their attempts to overcome "cultural" opposition to their empowerment. A situation analysis of women's status and how it limits possibilities for change in the status of women will also be outlined, as well as proposals for possible change. While NGOs have tended to be reactionary to government policy, a new trend set off by feminist-oriented NGOs has made most of them proactive on matters relating to policy on women.

Women's experience in Malawi over the establishment of the second chamber of Parliament, the Senate, illustrates women's potential power to influence policy decisions and push for their special interests, yet at the same time it illustrates women's political impotence. During the transition to multiparty democracy, women participated in the drafting of a new constitution, before the first democratic general elections. In February 1995, a national constitutional review conference reviewed and finalized the draft constitution; in May, the people ratified and adopted this draft as the national constitution.²⁴ Fearing proposals to cut the Senate from the governmental structure established by the draft constitution, women delegates to the conference acquired a majority vote by forming a coalition with traditional chiefs. The coalition enabled them to retain the Senate provision when a vote was cast on the issue. The argument for a Senate was that there were very few women in Parliament, so large numbers of women were unlikely to be elected to Parliament in the foreseeable future. The Senate therefore seemed to be the only avenue through which women would be likely to participate in shaping national legislation. When Parliament met to ratify resolutions made at the constitutional conference, the House indicated that in principle it agreed with the need to establish a Senate; however, the implementation of this resolution would be withheld until resources became available for setting up the Senate. By the time the second general elections were held, in 1999, public discourse ignored the issue of a Senate. The Senate was eliminated from the Constitution by an act of Parliament in 2001.²⁵

Viewed in historical terms, a political alliance between chiefs and women activists is not at all surprising. The movement for Malawi's independence was led by younger educated men, most of whom were to some extent ambivalent about certain aspects of indigenous Malawian culture (Forster 1994). Traditional chiefs were alienated from power by the colonial government and the rising elitist nationalist leaders (Chipembere 2002). In contrast, Kamuzu Banda had redefined culture and tradition and used it as a basis for demanding loyalty from citizens. He enhanced tradi-

tional chiefs' roles of maintaining order and controlling subjects in rural areas. He strengthened traditional (local) courts presided over by chiefs, thereby giving them a sense of power; hence their loyalty to his regime. The strengthening of local chiefs went hand in hand with the mobilization of women through the *mbumba* culture, and created an illusion of a benefactor whose power lay on a mass-based participatory government. In the post-Banda political dispensation, where power was to be based on the popular vote and not patronage, it was clear to women's groups and chiefs that power would primarily go to middle-class educated men with access to disposable incomes to finance their political careers. Women's groups and chiefs therefore articulated their demands for retaining the Senate by citing cultural values of respect for elders and traditional decision-making processes at the village level, processes in which women were the kingmakers, particularly in matrilineal Malawi.²⁶ Outside the formal political process, women have limited options to resist the apparent encroachment of their rights. The continued existence of the matrilineal system in the face of modernizing change is itself an indication of resistance. Within this cultural milieu, women utilize the enduring features of matriliney as a last defense against the erosion of their autonomy. For example, in some parts of Chiradzulu District, in Southern Malawi, women are taking advantage of their role as kingmakers and influencing the appointment of fellow women to the position of chiefs. As a result, there are a significant number of female chiefs in the area.²⁷ The women may be responding, not to the political onslaught on their rights, but to the absence of men, who in search of employment tend to migrate to urban areas and agricultural farms; however, women lack the organizational ability, the financial and human capital, and the sophistication that would put them at par with men. Therefore, deliberate effort by government and nongovernmental organizations is the most viable option for easing women's entry into the formal political process.

The transition to democracy in 1993–1994 created space for various actors to influence the pace of social change and development in Malawi. NGOs have emerged as key players. Operating under an umbrella body, the Council for Non-Governmental Organizations in Malawi (CONGOMA), NGOs have increased the scope of their activities from eight thematic areas in 1995²⁸ to twenty-three thematic areas in 2000.²⁹ Most development-oriented NGOs related to gender and women have focused on women's practical gender needs by providing credit for income-generation activities, skills training, and the organization of women into microgroups for accessing resources. In contrast, human-rights-oriented NGOs have played a critical role in advocating strategic changes in women's status and roles in Malawi, particularly where cultural justifications have been used to maintain the status quo.

Five examples of NGOs illustrate these points. Women's Voice (Liu la Amayi), a gender-awareness organization, is involved in research and advocacy. In 1999, it conducted a study on traditional practices or customs

and their effects on women's and children's rights. It found that culture is the basis of relationships between women and men and the measure for defining roles for women and men; that Malawians perceive women to be weak and lacking courage, and thus unable to take up some tasks that are perceived to be for men; that knowledge of women's and children's rights is limited; and that cultural practices such as funeral rites, initiation ceremonies, and traditional marriage contribute to the subordination of women and children (Women's Voice 2000). This NGO has since taken up civic education, advocacy, and lobbying as strategies to empower women and children. To overcome problems concerning the ownership of property upon the death of a spouse (in most instances the man, who tends to be the breadwinner), Women's Voice has embarked on a campaign to educate the public on the importance of writing a will, and has, as part of this campaign, has published pamphlets and posters in English and Chichewa (Women's Voice n.d.). The Malawi Center for Advice, Research and Education Rights (Malawi CARER) is a human-rights NGO that was formed to help people know, claim, and defend their rights. It has provided free legal representation to women on a wide range of issues, including fair sharing of property on divorce or a spouse's death and tenant-landlord disputes, especially where women are threatened with eviction. It is also involved in raising awareness on legal literacy through publishing pamphlets that explain aspects of the law in simple terms.³⁰ The Society for the Advancement of Women (SAW) focuses on violence against women. It supports a shelter for victims of domestic violence, conducts awareness campaigns, and offers counseling for victims of violence. The Women Lawyers Association provides free legal representation to women.

One of the most recognizable NGOs working on gender in Malawi is Women and Law in Southern Africa, Malawi Chapter (WLSA-Malawi). WLSA is a Southern Africa³¹ research trust, whose activities involve socio-legal, collaborative, strategic, and action research and lobbying for legal reforms and policy changes on laws and practices that disadvantage women (WLSA n.d.). It has actively lobbied for gender inclusiveness on a wide range of government policy initiatives, including the National Gender Policy and the Land Reform Policy, and has addressed specific laws that it wants changed, laws such as the Wills and Inheritance Act. It has recently been involved in drafting a bill on domestic violence. In its white paper on the bill, it includes marital rape as a punishable offense. Resistance to the proposal has mostly come from men, at all levels of society, including the clergy from various faiths. At a conference that WLSA organized to sensitize and lobby members of the legal profession, resistance came from prominent judges, one of whom argued that there should not be such a thing as marital rape, since the concept does not exist in Malawian culture, and expressed fear that should marital rape be a punishable crime, more married men would be in jail than on the street (Backbencher 2002:7). In "Float the Kwacha³² and Culture," a weekend newspaper commentary on the issue, an anonymous author argued that unless Malawian culture were

floated like the *kwacha*, the survival and growth of Malawi as a nation were threatened. The author indicated that Malawian culture is politically controlled and wondered if it takes money to free women, especially wives, from the humiliating subservient roles they are made to play in the home (Backbencher 2002:7). The benefit accrued from the controversy was to raise public awareness and debate on the issue of violence against women and the question of the status of women (White 2001:16).

NGOs have attempted to check government attempts to stifle the blossoming of gender equality, albeit in a limited manner. When the bill to cut the Senate from the constitution was tabled, NGOs tried to get a court injunction to stop Parliament from discussing the bill; however, they obtained the injunction only after the bill had been discussed and passed. They went back to court to get an injunction to stop the state president from assenting the bill. By the time the second injunction had been granted, the president had assented to the bill. NGOs argued that there was need for wider consultation before the Senate could be removed from the constitution. The government, aware that the public consensus would be to retain the Senate, did not publicize the proposal to table the bill, and finished the process quickly. The NGOs still lack the capacity—the financial, personnel, and technical skills—that would make them effective agents for change. Apart from internal evaluations, no systematic research has been conducted on the NGOs and their roles. In addition to publicizing their activities, local newspapers publish commentaries on gender issues, particularly those relating to women's interests. *NATION*, a weekday newspaper, carries a special section on gender in its Thursday editions. A recent article, "Some laws, practices still against women," indicated that despite being granted equality with men in the constitution, women face nonlegal barriers (Nyekanyeka 2002:7): they are still discriminated against in dealings with the church and traditional authorities, in matters relating to the acquisition of property, and by laws that are inconsistent with the new constitution. Immigration provisions illustrate this impasse. The passport application form (No. MP205) indicates that persons under the age 21 may not be granted passports without the written consent of their legal guardian, normally the father. The situation is more complicated in the absence of the father: the mother or any person claiming to be legal guardian must produce a court order committing the child to the mother or that person. If the father is dead, the mother has to submit a statement to that effect and produce a death certificate. This state of affairs is curious in a country where two-thirds of the population traces descent through the mother's line. Most importantly, this practice seems not to be in line with the non-discrimination clause in Malawi's constitution.

Why aren't women taking advantage of the constitutional provisions and challenging discriminatory laws in the courts? Litigation is a complicated process for women, because of its duration, cost, and intricacies, about which they know little. In cases where a woman is a single mother, the morality of her personal life would become a subject of public debate.

As a result, most women seek the biological father of the child and go through the process. Low levels of education, residence in rural areas, and lack of participation in politics militate against women's realizing their human rights as enshrined in the constitution. The most viable avenue for women is the advocacy role played by the NGOs. A wide gap exists between government rhetoric and action. Therefore, lobbying for legal changes by NGOs seems the most viable way of ensuring a speedy change in laws that do not conform to the constitution. Legal literacy campaigns may help empower women with knowledge of the law and their rights. The next presidential and parliamentary elections will be in 2004. NGOs can start setting the agenda for these elections by (i) identifying possible female candidates for parliamentary seats and providing them with exposure to the public and training, and (ii) taking advantage of the fact that President Muluzi is the chair of SADC for 2001/2002 and bringing into public discourse the issue of quotas for women in political and decision-making positions, as per the 1997 SADC Declaration on Gender Equality.

Conclusion

This paper has examined the impact of international political pressure and internal legal changes within the cultural, historical, and political contexts of Malawi. Local culture has played an elusive role, at times facilitating the exploitation of women for male leaders' political gain, and at times providing for the symbolic protection of women within a system of patronage. This state of affairs reflects politically powerful Malawians' success in defining culture to suit their own agendas. As a result, it has become difficult to predict the outcomes of initiatives for legal and cultural change regarding women's status. So long as the world at large has been watching, the government has preached gender equality, but will to act is not there. What is needed is a well-organized effort by institutions with the capacity to challenge the government. NGOs are the most viable avenue for speeding up women's participation in politics and the law. NGOs will have to take a two-pronged approach: first, pushing for legal changes and providing legal literacy to women; and second, addressing constraints on women's participation in the cultural arena through civic education.

NOTES

1. Matrilineal groups of Bantu origin found in the central and southern regions of present-day Malawi (Phiri 1997:23).
2. Author's emphasis.
3. The 1998 Malawi Population and Housing Census shows that the country's population is 9,933,868; 51 percent of the population is female, and the sex ratio is 96 (Government of Malawi 2000:ix, xiv).

4. The fear of appropriating power was not valid, since the chiefs had no real power that could be appropriated. The actual appropriation of power had occurred in the early 1900s, when British rule was imposed on the chiefs. In this case, nationalists would take over power from the colonialists, not the chiefs (Chipembere 2002:241).
5. Chiefs such as Mponda-Mambo in the Mangochi (formerly Fort Johnston) area (Chipembere 2002:241).
6. Though a comparison of women's status in matrilineal and patrilineal systems of Malawi is more desirable to get a holistic picture on women's status, there is a dearth of literature and research on gender relations in the latter.
7. Despite the fact that *tsinde* and *mbumba* go hand in hand, as would be expected of contradictory conditions.
8. Banda's regime made it difficult for people to resist even if they had wished to; however, the continued existence of the patrilineal system is, in itself, an illustration of strong resistance against the encroachment of matrilineal traditions.
9. For a verbatim report of the debate, see "Proceedings of the First Meeting of the First Session of the National Assembly, May 26th–29th, 1964" (Nyasaland Protectorate 1964:33–54).
10. Even though this was a considerable amount in 1967, the value of the Malawi *kwacha* has gone down over the years. As of 18 January 2002, this amount was equivalent to US\$149.00, and as of 23 August 2002, it was equivalent to US\$132.00.
11. This point is examined in detail within the context of legal changes and political rhetoric in the post-Banda era.
12. For example, in the 1970s, Ms. Eddah Chitalo and Ms. Sadyalunda were given ministerial portfolios. Their positions turned them into high-profile women. When they showed tendencies of amassing power, they fell out of favor of the ruling regime and lost their positions.
13. The only exception was when she attended nonpolitical functions such as the Women's World Day of Prayer Service as a guest of honor. In such cases, she would give a speech.
14. Some first-generation university female graduates such as the late Ms. Ruth Rachel Semu, Ms. Esnath Kalyati, and Ms. Linly Kamtengeni established their careers in the civil service and had, by the early 1990s, attained significant decision-making power.
15. An Equal Rights Clause was adopted in the new constitution of May 1995.
16. Alongside the MCP, the Women's League was a national organization with operational regional, district, area, and branch structures.
17. Malawi attained independence in 1964 and became a republic in 1966, after which a system of single-party dictatorial rule was followed until the referendum in 1993, which ushered in political pluralism. The last general elections under one-party rule, led by the Malawi Congress Party, were held in 1992.
18. The previous constitution gave the president of the country the power to nominate people to parliament. This provision has since been removed from the constitution, which recognizes women and men are supposed to stand on an equal footing when competing for public offices and other decision-making positions.
19. Despite the protection provided by the 1967 Wills and Inheritance Act, cases of property-grabbing by relatives of deceased husbands abound, especially when the deceased person had more resources than his relatives. The relatives often use tradition to claim the property. In addition, women's lack of knowledge of their rights and an inefficient and over-worked administrator general's office (the only office established to handle estate matters of deceased persons who die intestate) have led to further confusion.

20. The word for *gender* is commonly pronounced and spelled *jenda* in Malawi.
21. Head of all chiefs within a designated area.
22. The First Lady is involved in charity work through the Freedom Foundation Trust. At the end of the Year 2001, readers of the *NATION*, one of the local daily newspapers, voted the First lady as the "Woman of the Year." The readers cited her charity work among the less privileged and vulnerable groups, especially orphans, women, and people living with HIV/AIDS as the basis of their choice (Banda 2002).
23. Unlike the 1967 Wills and Inheritance Act, which introduced three inheritance regimes depending on type of marriage and where the marriage was contracted, the 1999 bill proposed a uniform system of inheritance for the entire country. The bill also proposed to make illegal all acts of property-grabbing by a deceased person's relatives.
24. The new constitution came into effect on 16 May 1995.
25. The issue is also discussed in the paper within the context of a discussion on the role of nongovernmental organizations and women's groups.
26. See Mario Aguilar and Laurel Aguilar's case study of women's organizing abilities among the Chewa of Malawi, a study that discusses the gendered roles of selecting a new village chief (1999:8–13).
27. Personal communication, Necton Mhura, Lecturer of the Chancellor College Faculty of Law, who conducted a study in the area in 1999.
28. HIV/AIDS, human rights, population, relief, "training for transformation," small enterprise development, water and sanitation, women and gender issues (CONGOMA 1995).
29. Advocacy, agriculture, capacity building, construction, counseling; coordination and networking; democracy, governance and tolerance; education-skills training, enterprise development and credit management, evangelism, family planning, food security and nutrition, forestry/environment, gender and women in development, HIV/AIDS, health, information technology, orphan care, photography (CONGOMA 2000).
30. Such as the following booklets: *Women and Rape: Know, Claim & Defend Your Rights* (2001); *The Courts and You: Court Users Guide* (1999); *The Homicide Accused and Their Rights* (n.d.).
31. The seven countries on the project are Botswana, Lesotho, Malawi, Mozambique, Swaziland, Zambia, and Zimbabwe.
32. Malawi currency. From 1994, strict controls on the value of the *kwacha* were removed. Currently, market forces set the value of the *kwacha* in relation to the U.S. dollar.

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